Public International Law

MACQUARIE University
SYDNEY·AUSTRALIA

Topic 6: Immunities

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THIS WEEK

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Part A

- Sovereign (or state) immunities
- Immunities of state officials

Part B

- Diplomatic and consular immunities
- Immunities of international organisations

International Law

IMMUNITIES: OVERVIEW

'Immunities' refers to instances where a State's adjudicatory and enforcement jurisdiction cannot be exercised as normal because another foreign State (or a foreign State representative) are involved in the case.

Part A

1st. State immunity

- Sovereign Acts *acta jure imperii* (absolute immunity)
- *Commercial Acts: acta jure gestionis (restricted immunity)*

2nd. Immunity of state representatives

- Personal immunity –***ratione personae* immunity**
- Functional immunity – or ***ratione materiae* immunity**

Part B

3rd. Diplomatic Immunities

Special protections given to ambassadors, embassy staff, and embassy premises (Vienna Convention on Diplomatic Relations)

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instances where adjudicatory and enforcement jurisdiction cannot be exercised as normal because of because another foreign State (or its official representatives) are involved in the case.

1. State Immunity

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International Law

STATE IMMUNITY

The international law of immunities sets limits on when a state may exercise jurisdiction within its own territory.

Grounded in the fundamental principle of sovereign equality, which reflects the independence of states => also juridically equal, therefore no state may exercise jurisdiction over another without consent

That is, the domestic courts of one state may decline to exercise jurisdiction if the respondent in the case is another state (incl. cases concerning foreign states' officials or property)

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STATE IMMUNITY

Immunity for Adjudicative Jurisdiction vs Immunity from Enforcement Jurisdiction

- **Adjudicative Jurisdiction** relates to the power of a court to adjudicate on matter. In other words, to look into the merits of the subject matter and render a decision based on the applicable legal rules and principles.
- **Enforcement Jurisdiction** concerns the implementation of whatever judgment is rendered. So, the question of enforcing arises, only after a) adjudicative jurisdiction has been established and b) a judgment entailing some sort of enforcement measures (e.g. confiscation of certain assets) is rendered.

→ In practice,:

  - **State immunity from adjudication means** that a state cannot be sued before a foreign court unless it gives its consent.
  - **State immunity from enforcement means** that the judgment which has been rendered cannot be enforced upon the state due to immunity.

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STATE IMMUNITY

- Immunity acts as a procedural barrier to a court's adjudicatory jurisdiction.

- State immunity is a principle of customary international law – a principle well established in State practice and in the jurisprudence of national and international courts.

There have been a few efforts to codify this understanding:

→ Initial work undertaken by the International Law Commission (ILC) *Draft Articles on Jurisdictional Immunities of States and their Property* (1991)

→ Resulted in the *UN Convention on Jurisdictional Immunities of States and their Property (2004)* => comes into force once there are 30 ratifications (as of 2026, 25 ratifications/accession have been received) https://treaties.un.org/pages/showDetails.aspx?objid=08000002800579 46&clang=_en

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UNITED NATIONS CONVENTION ON JURISDICTIONAL IMMUNITIES OF STATES AND THEIR PROPERTY (2004)

General Principles

Art 5: 'A State enjoys immunity, in respect of itself and its property, from the jurisdiction of the courts of another State

Art 6: modalities for giving effect to state immunity (refraining from exercising jurisdiction before its courts)

Art 7: no immunity if state expressly consents to the exercise of foreign jurisdiction (e.g., by agreement)

Art 8: no immunity if state participates in court proceedings

Art 9: no immunity in counterclaims (arising from proceedings initiated by a state or otherwise participated in)

International Law

STATE IMMUNITY

Definition of "state" => Art. 2 (1) (b) *United Nations Convention on Jurisdictional Immunities of States and Their Property (2004)*

- ✓ the State and its various organs of government
- ✓ Constituent units of a federal State or political subdivisions of the State that are entitled to perform acts in the exercise of the sovereign authority of the State
- ✓ Agencies or instrumentalities of the State and other entities, to the extent that they are entitled to perform acts in the exercise of the sovereign authority of the State;
- ✓ Representatives of the State acting in that capacity.

International Law

STATE IMMUNITY

- See UK: **State Immunity Act 1978 (broadly consistent with the 2004 UN Convention on State Immunities**, which was signed by the UK in 2005 but not yet ratified). - Treats State immunity as a preliminary matter. s1(2)] There is a presumption that a State possesses immunity with the plaintiff bearing the burden of proof to the contrary.

- Similar position in Australia: **Foreign States Immunities Act 1985** - foreign states are in principle immune to the jurisdiction of Australian courts, unless and to the extent that the state has waived immunity, or the case concerns a commercial transaction.

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Distinction!

Jure imperii: Act of a sovereign nature➔ immunity applies

E.g., Foreign and military affairs; legislation, police power, administration of justice.

Empire of Iran Case (1963), Germany: *the German Federal Constitutional Court found that absolute State immunity was no longer customary international law - distinguishing between sovereign acts (jure imperii) and commercial acts (jure gestionis).*

Jure gestionis: Act of non-sovereign nature➔ Immunity do not apply

E.g. activities of a commercial nature

Trendex Trading Corporation v Central Bank of Nigeria (1977), English Court of Appeal: *Court rejected immunity in proceedings against the Central Bank of Nigeria, which had failed to honour a letter of credit.*

International Law

STATE IMMUNITY

UN Convention on Jurisdictional Immunities, Art. 10

"If a State engages in a commercial transaction with a foreign natural or juridical person … the State cannot invoke immunity from that jurisdiction in a proceeding arising out of that commercial transaction."

Exceptions

- ✓ Commercial transactions between States
- ✓ If the parties to the commercial transaction have expressly agreed

What is a commercial transaction?

Art. 2 (1) (c) UN Convention on Jurisdictional Immunities

➔ Any commercial contract or transaction for the sale of goods or supply of services

➔ Any contract for a loan or other transaction of a financial nature, including any obligation of guarantee or of indemnity in respect of any such loan or transaction

➔ Any other contract or transaction of a commercial, industrial, trading or professional nature, but not including a contract of employment of persons.

Proceedings in which State immunity cannot be invoked

UN Convention on Jurisdictional Immunities

- Art. 10 : Commercial transactions
- Art 11: certain contracts of employment
- Art 13: rights of ownership, possession and use of property
- Art 14: intellectual and industrial property
- Art 15: participation in companies or other collective bodies
- Art 16: ships owned or operated by a state (unless used for government non-commercial purposes, exception for warship)
- Art 17: arbitration agreement relating to a commercial transactions

How to ascertain if a state conduct is a sovereign act or a commercial transaction?

Art. 2 (2) UN Convention on Jurisdictional Immunities

In determining whether a contract or transaction is a "commercial transaction" under paragraph 1 (c), reference should be made primarily to the **nature of the contract or transaction**… 'but its purpose should also be taken into account if the parties to the contract or transaction have so agreed…'

- The classification of a commercial transaction depends primarily on the nature of the activity (e.g., purchasing goods or providing services) not on the broader policy objective
- Courts assess whether the activity resembles private commercial conduct, but also possible to consider the activity's purpose if parties so agreed.
- This qualification raises further issues, as States generally apply public policy objectives into their commercial transactions.

International Law

STATE IMMUNITY

***Playa Largo v I Congreso del Partido* (1983) case (landmark international maritime law case)**

- Cuba's state-owned shipping company agreed to deliver sugar to Chile but was ordered to divert the ships due to political tensions after a coup in Chile.
- Cuba claimed sovereign immunity, arguing the diversion had a foreign policy objective.
- The UK House of Lords rejected Cuba's immunity claim, stating that the shipping activity was commercial (*jure gestionis*), not sovereign (*jure imperii*).



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Are only commercial activities and certain contracts excluded from state immunity?

Injury to individuals and damage to property

Art. 12 UN Convention on Jurisdictional Immunities

"Unless otherwise agreed between the States concerned, a State cannot invoke immunity from jurisdiction before a court of another State which is otherwise competent in a proceeding which relates to pecuniary compensation for death or injury to the person, or damage to or loss of tangible property, caused by an act or omission which is alleged to be attributable to the State, if the act or omission occurred in whole or in part in the territory of that other State and if the author of the act or omission was present in that territory at the time of the act or omission."

International Law

STATE IMMUNITY

Serious violations of international human rights law or international humanitarian law

- Recall: State immunity serves as a procedural legal shield that prevents national courts from exercising jurisdiction over foreign states. It acts as a barrier to domestic courts when another state is involved in the case. If a state is entitled to immunity, the court must dismiss the case.

Question: Will this hold regardless of the seriousness of the allegations made against the state? E.g. in cases involving serious human rights violations or grave breaches of international law?

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Serious violations of international human rights law or international humanitarian law

Jurisdictional Immunities of the State (Germany v Italy: Greece Intervening) [2012] ICJ Rep 99

- Concerned civil proceedings in Italian courts against the State of Germany with respect to serious crimes committed by German forces against civilian populations and prisoners of war during the occupation of Italy in Word War II
- Germany brought the case before the ICJ claiming that Italian courts (and thus the Italian state) were violating its right to state immunity
- ICJ ruled that (as of 2012) customary international law did not deprive a state of immunity because of alleged serious violations of international human rights law & IHL

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What about *jus cogens* norms?

"The rules of State immunity are procedural in character and are confined to determining whether or not the courts of one State may exercise jurisdiction in respect of another… It regulates the exercise of jurisdiction in respect of particular conduct and is thus entirely distinct from the substantive law which determines whether that conduct is lawful or unlawful."

(***ICJ Jurisdictional Immunities of the State***, para 93)

"In the Court's opinion, State practice in the form of judicial decisions supports the proposition that State immunity for acta jure imperii continues to extend to civil proceedings for acts occasioning death, personal injury or damage to property committed by the armed forces and other organs of a State in the conduct of armed conflict, even if the relevant acts take place on the territory of the forum State." (Ibid, para 77)

- ✓ **Despite strong arguments that states should not be immune when committing such acts, it would seem that a State enjoys immunity in foreign national courts—even when the case involves grave breaches of international law.**
- ✓ "Powerful policy arguments may be advanced in favour of such an exception, but state practice does not, at present, support the existence of a rule depriving states of immunity in such circumstances" Rose et al

2. Immunities of state officials

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IMMUNITIES OF STATE REPRESENTATIVES

State representatives enjoy certain immunities from national jurisdiction because they 'personify' the State on whose behalf they act and because they need protection from national jurisdiction in order to fulfil their functions as state representatives.

As the ICJ held in the Arrest Warrant case of 2011 between Congo and Belgium:

> "In customary international law, the immunities accorded to Ministers for Foreign Affairs are not granted for their personal benefit, but to ensure the effective performance of their functions on behalf of their respective States. … In the performance of these: functions, he or she is frequently required to travel internationally, and thus must be in a position freely to do so whenever the need should arise. He or she must also be in constant communication with the Government, and with its diplomatic missions around the world, and be capable at any time of communicating with representatives of other States…"

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State officials/representatives of the state (individuals)

- ➔ Head of state
- ➔ Ministers
- ➔ Government officials / Civil servants

The extent of immunity offered to various representatives differs substantially depending on the office they hold (function they serve) and whether they acted in official capacity.

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IMMUNITIES OF STATE REPRESENTATIVES

Functional immunity (*ratione materiae*) – (this immunity relates not to the person itself but the function that the official performs, it's about the act itself being an official act of the state)

- Immunity only in relation to official acts taken while in office
- Continues after official leaves office.
- Based on customary international law
- As long as an act is performed by an individual with official authority ('under the colour of authority') it is an 'official' act. And for the act the individual is immune from criminal prosecution before foreign national courts.
- Can be waived only with state's consent

Personal immunity (*ratione personae*) - (protection you enjoy because of the office you hold – this being a personifying the state)

- Complete immunity, even in relation to acts of a private nature
- Applies only to very high-ranking state officials (i.e., in particular, heads of state, heads of government, foreign ministers)
- Heads of state & Foreign Ministers enjoy privileged status in international law (see Certain Questions of Mutual Assistance in Criminal Matters (Djibouti v. France) 2008, ICJ found this is customary international law)
- Temporal limit: only for the duration of the officials' time in office (after which they continue to enjoy functional immunity)
- Can be waived by the state

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IMMUNITIES OF STATE REPRESENTATIVES

Question: Would a State representative be immune from domestic criminal proceedings for alleged serious violations of international law, such as war crimes or crimes against humanity?

- ➔ Under the current state of international law: both functional and personal immunities continue to apply, even in cases of serious international crimes (e.g. war crimes, crimes against humanity, genocide) - see e.g. ***Arrest Warrant of 11 April 2000 (Democratic Republic of Congo v Belgium) (Judgment) [2002] ICJ Rep 3 paras 58 et seq***. - ICJ ruled that current state practice does not support existence of an exception to immunity from foreign criminal jurisdiction in situations concerning the commission of international crimes…However, it noted that immunity does not mean impunity…

- ➔ This case concerns an incumbent foreign minister (i.e. personal immunity).

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IMMUNITIES OF STATE REPRESENTATIVES

Arrest Warrant of 11 April 2000 (Democratic Republic of Congo v Belgium) (Judgment) [2002] ICJ Rep 3 paras 58-61.

"The Court emphasizes, however, that **the immunity from jurisdiction enjoyed by incumbent Ministers for Foreign Affairs does not mean that they enjoy impunity in respect of any crimes they might have committed…** Immunity from criminal jurisdiction and individual criminal responsibility are quite separate concepts. While jurisdictional immunity is procedural in nature, criminal responsibility is a question of substantive law. Jurisdictional immunity may well bar prosecution for a certain period or for certain offences; it cannot exonerate the person to whom it applies from all criminal responsibility."

Criminal prosecution of the individual is still possible:

1. **Domestic prosecution in their own countries:** such persons enjoy no criminal immunity under international law in their own countries and may thus be tried by those countries' courts in accordance with the relevant rules of domestic law.
2. **Their countries can waive their immunity:** these persons will cease to enjoy immunity from foreign jurisdiction if the State which they represent or have represented decides to waive that immunity.
3. **Once the individual leaves their functions, other states with jurisdiction could try them:** That applies in respect of acts committed before or after their period of office and for acts committed during that period of office in a private capacity.
4. **International Criminal Courts may also be able to prosecute**: an incumbent or former Minister for Foreign Affairs may be subject to criminal proceedings before certain international criminal courts, where they have jurisdiction. e.g. the International Criminal Tribunal for the former Yugoslavia, the International Criminal Tribunal for Rwanda, and the International Criminal Court.

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IMMUNITIES OF STATE REPRESENTATIVES

Former state officials prosecuted for international crimes *after* they have left office (i.e. questions of functional immunity)?

***R v Bow Street Metropolitan Stipendiary Magistrate, Ex parte Pinochet Ugarte* (Pinochet No 3) UK House of Lords (1999)**

Case of former Chile president Pinochet (in office from 1973-1990) who travelled to UK for medical treatment, when Spanish courts brought criminal case against him under Spain's universal jurisdiction laws and requested extradition, incl. in relation to charges of torture

- Pinochet was arrested in the UK, giving rise to extradition proceedings in UK courts.
- House of Lords held that **while there is absolute immunity for serving heads of state, there is no immunity for former heads of state in relation to acts which, at the time when they occurred, constituted an international crime for which a form of universal jurisdiction has been established** (e.g. torture as enshrined in the Convention against Torture)
- Ultimately, allowed to leave the country on medical grounds (died in 2006)
- Emerging exceptions in state practice regarding functional immunity in cases of international crimes? => see also ILC draft articles on this issue (2017)

See also: **ILC Report**, 'Immunity of State officials from foreign criminal jurisdiction' ***Draft Article 7; immunity should not apply in relation to the following international crimes: genocide, crimes against humanity, war crimes, torture and enforced disappearances.***

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PART B

1. Diplomatic Immunities

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International Law

DIPLOMATIC IMMUNITIES

Functions of diplomatic missions include the representation, promotion and protection of the interests and nationals of the sending state.

Diplomats and consular officials– benefit from a special legal protection regime codified in two conventions (prior to 1961 entirely governed by customary international law or through bilateral treaties):

- Vienna Convention on Diplomatic Relations (VCDR, 1961)
- Vienna Convention on Consular Relations (VCCR, 1963)

ICJ, Teheran Hostage, 1980, para 86

"the rules of diplomatic law … constitute a self-contained regime, which on the one hand, lays out the receiving State's obligations regarding the facilities, privileges and immunities to be accorded to diplomatic missions and, on the other, foresees their possible abuse by members of the mission and specifies the means at the disposal of the receiving State to counter any such abuse."

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DIPLOMATIC IMMUNITIES

To whom do diplomatic immunities apply?

- **Diplomatic agents** (e.g., ambassadors but also lower-level diplomatic agents)
- **Consular agents** (who represent the state in administrative or technical matters)
- **Members of the family** of a diplomatic agent forming part of the household enjoy immunity from jurisdiction, unless nationals of the receiving state
- **Members of the administrative and technical staff** of the mission (subject to greater exceptions) along with family members making up their households, if not nationals or permanent residents of the receiving State
- **Members of service staff** who are not national or permanent residents enjoy immunity in respect to acts performed in the course of their official duties

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International Law

DIPLOMATIC IMMUNITIES

Vienna Convention on Diplomatic Relations (1961), Art. 31:

A diplomatic agent shall enjoy immunity from the criminal jurisdiction of the receiving State (personal immunity). …shall also enjoy immunity (personal immunity) from its civil and administrative jurisdiction, except in the case of:

(a) A **real action relating to private immovable property** situated in the territory of the receiving State, unless he holds it on behalf of the sending State for the purposes of the mission;

(b) An action relating to **succession** in which the diplomatic agent is involved as executor, administrator, heir or legatee as a private person and not on behalf of the sending State;

(c) An action relating to any **professional or commercial activity** exercised by the diplomatic agent in the receiving State outside his official functions.

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DIPLOMATIC IMMUNITIES

Vienna Convention on Diplomatic Relations (1961)

- Article 29: The person of a diplomatic agent is inviolable (e.g. cannot be arrested).
- Article 30: The private residence of a diplomatic agent, his papers and correspondence, are also inviolable.
- Article 41: A diplomatic agent has a duty to respect the laws and regulations of the receiving State. They also have a duty not to interfere in the internal affairs of the state.

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Vienna Convention on Consular Relations (VCCR, 1963)

- Immunities are more restricted.
- Limited personal inviolability from arrest or detention (e.g., can be arrested for a ‘grave crime’) (Art. 41, VCCR)
- Immunity ratione materiae only with respect to criminal and civil matters (Art. 43, VCCR).

International Law

DIPLOMATIC IMMUNITIES

Scope of Diplomatic Immunity (cont.)

Diplomatic missions

- Immunities and inviolability also extend to **diplomatic missions** (Art. 22, VCDR), except with consent of head of mission.

- Immune from search, requisition, attachment, and execution:

  - Premise of the mission
  - Furnishings and other property within
  - Means of transportation
  - Archives (Art.24)

The receiving State has a duty to protect the premises of the mission against any intrusion or damage and to prevent any disturbance of the peace of the mission or impairment of its dignity (Art. 22 (2) VCDR). – see also UN Convention on the Prevention and Punishment of Crimes against Internationally Protected persons, Including Diplomatic Agents of 1973.

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The scope of diplomatic immunity



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DIPLOMATIC IMMUNITIES

***United States Diplomatic and Consular Staff in Tehran (United States of America v. Iran)* (Judgment) [1980] ICJ Rep 3**

Facts: During the Iranian revolution, in 1979, militants stormed the US Embassy. Over 50 US diplomats and consular officials were held hostage for 444 days from November 1979 to January 1981. Iranian security forces did not intervene.

The US brought the case before the ICJ and claimed violation of the VCDR and VCCR

ICJ confirmed the inviolability of diplomatic envoys and embassies under international law and determined that Iran's inaction had violated its international obligations



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Abuses of diplomatic immunity

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What happens if diplomatic immunity is abused and no exception to immunity applies?

- ***Persona non grata*': receiving state declares presence of a person as not acceptable, revoking diplomatic credentials (VCDR, Art. 9) => e.g., US against Russian diplomats after allegations of Russian interference in the 2016 US elections
- Severance or breach of diplomatic relations
- Other 'unfriendly acts'
- Nothing
- Waiver of immunity (by the sending state)

PART B

2. Immunities of International Organisations

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Immunities of IOs

- ✓ International organisations also benefit from immunity from domestic jurisdiction under certain circumstances (e.g. UN, EU etc.)
- ✓ These immunities are considered necessary to carry out their functions without interference from the state where they are operating/similar treatment in different countries.
- ✓ International organizations enjoy those immunities and privileges as granted to them by states => sometimes this is done through treaties, e.g. Convention on the Privileges and Immunities of the United Nations (1946)

Immunities of IOs

UN Charter Art. 105

"1. The Organization shall enjoy in the territory of each of its Members such privileges and immunities as are necessary for the fulfillment of its purposes.

2. Representatives of the Members of the United Nations and officials of the Organization shall similarly enjoy such privileges and immunities as are necessary for the independent exercise of their functions in connection with the Organization…"

Immunities of IOs

Immunities vary depending on functions

Representative of members: immunity from personal arrest or detention and from seizure of their personal baggage, and, in respect of words spoken or written and all acts done by them in their capacity as representatives, immunity from legal process of every kind; inviolability for all papers and documents, etc. (Art. IV)

UN officials: immune from legal process in respect of words spoken or written and all acts performed by them in their official capacity, etc (Art. V, Section 18)

Experts on missions: immunity from personal arrest or detention and from seizure of their personal baggage; in respect of words spoken or written and acts done by them in the course of the performance of their mission, immunity from legal process of every kind. This immunity continues even when no longer employed on missions for the United Nations; inviolability for all papers and documents (Art. VI)



UN Photo: Commemorative Event on International Day of Reflection and Commemoration of 1995 Genocide in Srebrenica, 2024.

Immunities of IOs

Convention on the Privileges and Immunities of the United Nations, 1946

Article 2

Section 2. The United Nations, its property and assets wherever located and by whomsoever held, shall enjoy immunity from every form of legal process except in so far as in any particular case it has expressly waived its immunity. It is, however, understood that no waiver of immunity shall extend to any measure of execution.

Section 3. The premises of the United Nations shall be inviolable. The property and assets of the United Nations, wherever located and by whom soever held, shall be immune from search, requisition, confiscation, expropriation and any other form of interference, whether by executive, administrative, judicial or legislative action.

Section 4. The archives of the United Nations, and in general all documents belonging to it or held by it, shall be inviolable wherever located.

Immunities of IOs

But what about accountability of international organisations?

=> May have to provide alternative modes for settling private claims

=> IOs can waive their immunity

Frequently raised, e.g., in the context of peacekeeping or sexual exploitation and abuse committed by UN peacekeepers

Case study: 2010 cholera outbreak in Haiti

- *Facts*: 2010 cholera outbreak in Haiti, nearly 10,000 people died. A UN-appointed panel concluded, in 2011, that contamination by a UN peacekeepers' camp was a likely cause of the epidemic, but said "it was not the fault of, or deliberate action of, a group or individual."
- While the UN Secretary-General has apologised, the UN has not accepted legal responsibility
- Cases were brought by human rights lawyers before US courts => in 2016, US federal courts upheld the UN's immunity

Immunities of IOs



UNPROFOR Srebrenica

[srêbrenitsa] **1995**

- *Stichting Mothers of Srebrenica and others v. The Netherlands*, Supreme Court of the Netherlands,13 April 2012
- *Stichting Mothers of Srebrenica and Others v the Netherlands* (ECtHR, 11 June 2013)

Both decisions recognised UN Immunity before domestic courts.

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